

outline the additional meet and confer efforts, identify any remaining discovery request at issue, and state the parties' respective positions. (*Ibid.*)

## I. Legal Standard

A party may file a motion compelling a further response to interrogatories if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2030.300, subd. (a).)

The motion for order to compel further responses must be served within 45 days of service of verified responses, plus the additional time if not personally served. (Code Civ. Proc., §§ 2030.300, subd. (c), 1010.6, subd. (a)(4); 1013.) If the responses are objections only, they are treated as verified responses with respect to the 45-day limit, but if the responses are a combination of both unverified responses and objections then the 45-day period does not start as the statute setting forth the time limit requires verification of hybrid responses. (*Gold & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 131, 136.) When the 45-day period applies, the demanding party waives the right to compel any further response if not timely filed. (Code Civ. Proc., §§ 2031.310, subd. (c), 2016.050; see *Sperber v. Robinson* (1994) 26 Cal.App.4th 736, 745.) The 45-day time limit is mandatory and "jurisdictional" such that the Court has no authority to grant a late motion. (*Sexton v. Superior Court (Millikin Med. Ctr.)* (1997) 58 Cal.App.4th 1403, 1410 [late filed motion to compel must be denied where objection raised at hearing even if omitted from opposition papers].) However, the deadline can be extended upon written agreement by the parties. (See Code Civ. Proc., § 2031.310, subd. (c).)

Here, it is undisputed the Hoovers served verified responses to the FROGs and RFPs on March 10, 2026.

In compliance with the Court's order, on June 22, 2026, the parties timely filed a Joint Statement stating the parties met and conferred on July 17, 2026 (sic) via telephone with respect to each FROG and RFP in dispute. Hoover agreed to serve supplemental verified written responses and documents to FROG Nos. 305.4, 305.5 (a) & (b), 311.1, and 311.3 and RFP Nos. 37, 38, 39 and 54 by July 15, 2026. FROG No. 314.1 remains in dispute but "Defendant, Cross-Complainant will agree to amend the response." (Joint Sep. Stmt., pg. 2:20-21.)

Based on the foregoing, it appears the motions are now **MOOT**.

## 2.

| CASE #      | CASE NAME                    | HEARING NAME                                                                                   |
|-------------|------------------------------|------------------------------------------------------------------------------------------------|
| CVRI2302700 | ASL BUILDERS, INC. VS HOOVER | MOTION TO COMPEL FURTHER RESPONSES TO FIRST SET OF REQUESTS FOR DOCUMENTS AND THINGS (SET ONE) |

**Tentative Ruling:** See #1 above. Moot.